National
Qualifications
2026

2026 Philosophy

National 5

Question Paper Finalised Marking Instructions

These marking instructions have been prepared by examination teams for use by Qualifications Scotland appointed markers when marking external course assessments.

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General Marking Principles for National 5 Philosophy

Always apply these general principles. Use them in conjunction with the detailed marking instructions, which identify the key features required in candidates' responses.

(a) Always use positive marking. This means candidates accumulate marks for the demonstration of relevant skills, knowledge and understanding; marks are not deducted for errors or omissions.

(b) If a candidate response does not seem to be covered by either the principles or detailed marking instructions, and you are uncertain how to assess it, you must seek guidance from your team leader.

(c) The term 'or any other acceptable answer' allows for the possible variation in candidate responses. Credit should be given according to the accuracy and relevance of the candidate's answers. The skill of using appropriate philosophical terminology is reflected in exemplar responses, however at this level, candidates may be awarded marks where the answer is accurate but expressed in their own words.

(d) Refer to the glossary of terms provided in the course support notes. Different text books may use terms in different ways, and should candidates use a definition or explanation, or use language that is different from that given in the glossary, their response will be positively marked provided that the information given is correct.

(e) Questions that ask the candidate to 'name', 'give', 'state' or ask 'what is' or 'what are' are straightforward questions requiring candidates to recall key points of knowledge or to give examples. Marks available for these questions reflect the number of points the candidate needs to make. For example, if **(1 mark)** is available, the candidate needs to give **one** correct point. If **3 marks** are available, the candidate needs to make **three** correct key points in their response.

(f) Questions that ask the candidate to 'describe' require the candidate to make a point and then develop this point by giving further information about it. For example, if **2 marks** are available, the candidate should get **a mark** for making the main point and **a further mark** for developing the point by giving additional or related information.

(g) Questions that ask the candidate to 'explain' or 'use' require the candidate to give reasons or show connections. This may include giving reasons why an argument is valid. For example, if **3 marks** are available for an 'explain' question, the candidate should get **(1 mark)** for making a key point of explanation and **a further mark** for each additional correct key point of explanation.

(h) Questions that ask the candidate to 'evaluate' or 'apply' require the candidate to use their knowledge and understanding of a theory or argument to examine its validity or its usefulness in a given situation. For example, if a scenario is provided, candidates need to apply their knowledge and understanding of a theory or argument to a given situation. Evaluation can occur when asked to give information about strengths and weaknesses of a theory.

Marking instructions for each question

Section 1 — Arguments in action

Question			General marking instructions for this type of question	Max mark	Detailed marking instructions for this question
1.	(a)		State the purpose of an argument.	**1**	• arguments aim to persuade • arguments aim to convince someone that a claim is true • arguments aim to prove or refute a claim
	(b)		State the defining feature of a statement.	**1**	• statements are either true or false • statements have a truth value
	(c)		Tick (✓) the passages that **do not** contain arguments.	**4**	• **1 mark** each for 1, 2, 5 and 7
	(d)	(i)	Explain whether this is a valid argument. Your answer should include a definition of validity.	**2**	• in a valid argument the truth of the premises guarantees the truth of the conclusion • this argument is valid because if the premises are true then it would be impossible for Eric not to have taken the bag
		(ii)	Identify **three** errors the student has made.	**3**	• they have mistaken the conclusion for a premise • they have not changed 'that' to 'taken my bag' • they have included 'trust no-one!'/a command
	(e)	(i)	What is the conclusion of each of the arguments below?	**1**	• travelling to London is better on the plane than on the bus
		(ii)		**1**	• if you want to have more spending money then you should take the bus **(Award no marks for 'you should take the bus' on its own).**
		(iii)		**1**	• you'll have to take the train

Question			General marking instructions for this type of question	Max mark	Detailed marking instructions for this question
	(f)		Explain why the first argument contains a false dilemma fallacy and the second argument does not.	**3**	**One mark** should be awarded for each of the following points: • in false dilemma fallacies we are presented with two options as though they were the **only** options • there are other ways of getting to London besides the train and the bus • there is no way of getting to Barra other than by sea or air
	(g)	(i)	Describe the illegitimate appeal to authority fallacy.	**2**	An illegitimate appeal to authority is when a conclusion is established by appealing to an authority **(1 mark)** when in fact that person does not have appropriate expertise on the matter in question. **(1 mark)** Examples without a conclusion should not be credited.
		(ii)	Why is Fraser's argument not an illegitimate appeal to authority?	**1**	This is not an illegitimate appeal to authority because we might reasonably expect any adult to be able to recognise the symptoms of a cold. **(1 mark)**

Section 2 — Knowledge and doubt

Question			General marking instructions for this type of question	Max mark	Detailed marking instructions for this question
2.	(a)		State the **three** criteria of the tripartite theory of knowledge.	**1**	• justification, truth and belief
	(b)		Explain the relationship between these criteria in the definition of knowledge	**2**	• each criterion is individually necessary **(1 mark)** • the criteria are jointly sufficient **(1 mark)** (candidates can gain marks for an explanation of the relationship without using the terms 'individually necessary' or 'jointly sufficient'.)
	(c)		Explain why sceptics claim that the criteria of the tripartite theory of knowledge can't be met.	**3**	Candidates should be awarded **1 mark** for each relevant point. Relevant points of explanation may include: • sceptics claim that the justification criterion can never be met • the infinite regress of justification • an explanation of the infinite regress of justification • an example of the infinite regress of justification
	(d)		Identify the **two** correct statements for each philosopher. Candidates must identify the 2 correct statements and only 2 correct statements to get **2 marks**. If candidates identify 3 statements max **1 mark**.	**4**	**Locke:** D F **Leibniz:** A B
	(e)		As a rationalist what did Descartes think was the foundation of knowledge?	**1**	• reason

Question			General marking instructions for this type of question	Max mark	Detailed marking instructions for this question
	(f)	(i)	Name the argument	1	Deception of the senses/Dreaming/Deceiving God
		(ii)	Select one of Descartes' sceptical arguments. **If candidates have described more than one sceptical argument, they should be credited for the one that gains the most marks.**	3	**Deception of the senses argument:** • Descartes points out that his senses have sometimes deceived him **(1 mark)**, and that it is better not to trust entirely anything that has deceived you **(1 mark)** • examples of sense deception **(1 mark)** • he thinks we can doubt the senses about things that are far away or very small **(1 mark)** but that it is impossible to doubt that the senses give us knowledge of the world immediately around us. **(1 mark)** He says that if he was to doubt his immediate surroundings he would be a madman **(1 mark)** – his conclusion that some, but not all, sense experience is open to doubt **(1 mark)** **Dreaming argument:** • Descartes points out that there have been times when he's thought he's been sitting in his winter dressing gown by the fire when he's woken up to find himself asleep in his bed **(1 mark)** • he thinks this shows there are no certain signs by which he can tell the difference between dreaming and being awake **(1 mark)** • that means he can't be certain he's not dreaming right now **(1 mark)** • so his senses are not a reliable source of knowledge **(1 mark)** – a priori truths survive the dreaming argument **(1 mark)** – the ingredients for a dream must have come from the external world **(1 mark)** **Deceiving God argument:** • God is so powerful that he could trick Descartes into believing there is an external world when in fact there is not **(1 mark)** • God is so powerful that he could make Descartes be certain of mathematical 'truths' like '2+3=5' and 'squares have four sides' even if such things were not true **(1 mark)** • Descartes is therefore in the position of being able to doubt all knowledge based on the senses and all knowledge based on reason **(1 mark)** • there is not a single belief about which Descartes cannot raise a doubt **(1 mark)**

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Question			General marking instructions for this type of question	Max mark	Detailed marking instructions for this question
		(iii)	Explain **one** criticism of the argument. Criticisms may be strengths and/or weaknesses.	**3**	**Deception of the senses argument:** Descartes doesn't completely reject knowledge from the senses, which is a strength as it seems excessive not to trust something just because it has deceived us once **(1 mark)** Eg when we are deceived by our senses, our senses usually correct it. **(1 mark)** However this is inconsistent with what he states when he is describing his method. **(1 mark)** He should have completely rejected knowledge from the senses by his own terms. **(1 mark)** when we are deceived by one sense, the other senses usually correct it **(1 mark)** which suggests that the senses can be relied upon to a certain extent. **(1 mark)** However, Descartes would put this correction down to reason, rather than the senses. **(1 mark)** **Dreaming argument:** Descartes' argument is asymmetric. **(1 mark)** From the fact that we cannot tell we are dreaming when we are dreaming it does not follow that we cannot tell we are awake when we are awake **(1 mark)** There are lots of ways to tell whether we are awake, for example real life has a chronology that dreams lack. **(1 mark)** **Deceiving God argument:** It seems like it is impossible to doubt reason **(1 mark)**, but Descartes creates the possibility of doubting reason by bringing in the idea of an all-powerful being. **(1 mark)** The idea that this all-powerful being could be deceiving us makes it very difficult to find fault with the argument. **(1 mark)** He has already said that if there is the possibility of doubt we should not trust a source of knowledge. **(1 mark)** **A maximum of one mark should be awarded for a list of criticisms.**

Question			General marking instructions for this type of question	Max mark	Detailed marking instructions for this question
	(g)		Hume uses different categories of examples to support his claim that you cannot have an idea if you do not have the corresponding impression. State an example for each of the categories below. Candidates may be awarded a mark for any appropriate example — they do not need to come from Hume.		
		(i)	malfunctioning senses	1	• a blind person will have no idea of colour **(1 mark)**
		(ii)	absence of relevant experience	1	• someone who has no experience of wine can't imagine the taste of wine because they have had no prior impressions/a selfish heart can't have an idea of generosity **(1 mark)**
		(iii)	absence due to species limitation	1	• bats can 'see'/navigate using echolocation – we as humans can't understand what this would be like

Question			General marking instructions for this type of question	Max mark	Detailed marking instructions for this question
	(h)	(i)	Describe Hume's missing shade of blue (his counterexample to his claim that you cannot have an idea if you do not have the corresponding impression.)	**4**	Candidates should be awarded **(1 mark)** for each of the following points: • the missing shade of blue concerns someone who has experienced every shade of blue except one • all the shades they have experienced are lined up from the darkest to the lightest • the person would be able to identify where the missing shade should be • they would be able to imagine the missing shade
		(ii)	Explain why Hume dismisses this counterexample.	**1**	Hume says the example is so singular that it is scarcely worth observing
		(iii)	Do you think Hume is right to dismiss the missing shade of blue? Give reasons for your answer. Candidates should be credited with **1 mark** for making a point and a further mark for developing that point.	**4**	For example: • some people may think Hume was wrong to dismiss this counter-example, as a counter-example disproves a universal claim **(1 mark)** • this opens the door to innate ideas, which undermine his theory **(1 mark)** • Hume was right that it doesn't undermine his theory, because it can be explained away as a complex idea **(1 mark)** • some people might think that the missing shade of blue is not a singular example, because it applies to all types of idea that are on a spectrum **(1 mark)** However Hume was absolutely right to reject this counter-example as it is very rare that we actually acquire ideas in this way **(1 mark)**

Section 3 — Moral philosophy

Question			General marking instructions for this type of question	Max mark	Detailed marking instructions for this question
3.	(a)		Describe the key features of utilitarianism.	**6**	**Candidates should be awarded one mark for each descriptive point about a key feature of utilitarianism. For example:** • according to the greatest happiness principle an action is morally right if it brings about the greatest happiness for the greatest number **(1 mark)** • consequences are the only relevant factor in judging the moral value of an action **(1 mark)** • Teleological theory — this implies that moral worth of an action derives from the 'end' or the consequences of that action **(1 mark)** • according to utilitarianism, there are no actions that are intrinsically right or wrong. Everything depends on the result of that action **(1 mark)** • Hedonic principle — Maximising Pleasure is the only thing that has intrinsic moral value **(1 mark)** • Utilitarians believe that happiness is an end in itself: they seek to maximise happiness and avoid pain **(1 mark)** • aggregate happiness is the basis of morality rather than the happiness of an individual **(1 mark)** • Equity Principle — everyone's pleasure/happiness is of equal value **(1 mark)** • the hedonic calculus is used to calculate how much happiness an action will produce **(1 mark).** Factors of the hedonic calculus **(1 mark)** • higher pleasures are of greater value than lower pleasures. **(1 mark)** Examples of higher and lower pleasures **(1 mark)** **Any other relevant key feature.** **No marks should be awarded for simply naming key features.**

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Question			General marking instructions for this type of question	Max mark	Detailed marking instructions for this question
	(b)		You have studied another moral theory as well as utilitarianism. Describe the key features of your other moral theory.	**6**	**Candidates should be awarded one mark for each descriptive point about a key feature of their other moral theory. For example:** **Kantianism:** • deontological theory which focuses on duty. **(1 mark)** This means the theory is based on motives rather than consequences. **(1 mark)** Kant believed that actions are either intrinsically right or intrinsically wrong, independent of the consequences **(1 mark)** • reason is sovereign when making moral decisions **(1 mark)**. This means that you can know with certainty that an action is either moral or not. **(1 mark)**. Kant believes we can be as confident about the truth of a moral decision as we can knowing that 2+2=4 **(1 mark)** • Kant developed the Categorical Imperative as a way to test whether a maxim is moral or not **(1 mark)** • maxims are moral if they can be turned into universal laws **(1 mark)** 'Act only on that maxim through which you can at the same time will that it should become a universal law' **(1 mark)** • to consider whether it is morally acceptable to act on a maxim, it must be a principle that always treats people as ends in themselves **(1 mark)** 'Act that you use humanity, whether in your own person or in the person of any other, always at the same time as an end, never merely as a means.' **(1 mark)** • a perfect duty is one that you must always do, whereas an imperfect duty is not always required **(1 mark)**. For example, we have a perfect duty not to lie and an imperfect duty to help others **(1 mark)** **Virtue Ethics:** • it is concerned with how to live a good life — emphasis is on character rather than action **(1 mark)** • an action is good if it is what a virtuous person would do **(1 mark)** • virtues are what we need to live a good life **(1 mark)**

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					• for Aristotle, the good life involves fulfilling one's potential **(1 mark)** He also believes that humans are motivated by a desire to be happy (having a sense of wellbeing) and this can help guide whether an action is virtuous or not **(1 mark)** he argues that virtues lay at a midpoint between two opposing vices, this is known as the golden mean **(1 mark)** **Any other relevant key feature.** **No marks should be awarded for simply naming key features.**
	(c)	(i)	Read the scenario and answer the questions that follow. Violent mobs are searching for somebody they believe is guilty of a terrible crime. As a result, society is in chaos. You have the power to stop the chaos by sending an innocent person to jail for the crime. What advice would a utilitarian give you in the above scenario?	**6**	• the happiness of the person being punished needs to be balanced with that of the community **(1 mark)** • the pain for the individual could be outweighed by the benefits to the community **(1 mark)** • there might be multiple different utilitarian views about what to do **(1 mark)** • a utilitarian would ask you to use the hedonic calculus to determine what is the correct course of action **(1 mark)** • the consequences could be that punishing anyone might be a good deterrent and so help stop the chaos **(1 mark)** • it could be argued that the long-term consequences of punishing someone who is innocent would be bad so they might be against it **(1 mark)**. If people later realised what has happened this would undermine the legal system which would have a bad impact of society **(1 mark)** • some people might claim that Utilitarians believe that punishing an innocent is not a morally wrong action if it results in greater aggregate happiness. **(1 mark)** However, both Bentham and Mill believed that society needs a fair legal system that only allows for punishment to be given to the guilty **(1 mark)** • if you focus just on act utilitarianism you might decide that the consequences of punishing the innocent person are beneficial **(1 mark)** • a rule-utilitarian might disagree because a rule that says 'Punish the innocent — as a deterrent' would be a rule that has bad consequences to society so would be rejected **(1 mark)** **No mark should be awarded simply for stating what choice a utilitarian would make.**

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Question			General marking instructions for this type of question	Max mark	Detailed marking instructions for this question
		(ii)	With reference to the above scenario, explain **two** criticisms of utilitarianism. **Candidates should be awarded a maximum of two marks for each criticism if they do not refer to the scenario.** **Up to five marks can be awarded for each criticism.**	**6**	If a candidate chooses utilitarianism, they may discuss any of the following criticisms: • utilitarianism might allow for the tyranny of the majority **(1 mark)**, where the few suffer for the benefit of the many **(1 mark).** In this scenario you would be making one person suffer just to please the majority **(1 mark)**. Critics claim that Utilitarianism is not concerned with fairness/justice **(1 mark).** This is clearly evident in this scenario if an innocent person is punished to satisfy the majority **(1 mark)** • consequences are not all that matters when making moral decisions, for example, motive is a helpful guide to whether an action is moral or not. **(1 mark)** In this scenario it's more important to consider motives like acting justly or always being truthful **(1 mark)**. Utilitarianism could be criticised for justifying actions that intuitively seem immoral **(1 mark)**. If all that matters are consequences and maximising pleasure, then immoral actions could potentially be justified (**1 mark**) Punishing an innocent person is an obvious example of an immoral act, done with the intention of minimising pain **(1 mark).** • there is a difference between predicted and actual consequences **(1 mark)** The predicted benefits of punishing an innocent person with the expectation that it will benefit society might turn out to have the opposite effect **(1 mark)**. If people find out that an innocent person has been framed, this could cause even more unrest **(1 mark)**. • it might be relatively easy to work out short-term benefits compared to long-term ones. However, it's long-term ones that really matter **(1 mark)** In this scenario, there might be significant long-term issues that are hard to predict if you go ahead and punish an innocent person. **(1 mark)** Eg, the long-term effects might result in an undermining of the law and so a deterioration of trust in policing and the legal system **(1 mark)** **No marks should be awarded for criticisms that are not relevant to the scenario (for example, evil pleasures).**

Question			General marking instructions for this type of question	Max mark	Detailed marking instructions for this question
		(iii)	What advice would a follower of your other moral theory give you in the above scenario?	**6**	**Kantianism points related to the scenario:** • the decision to punish an innocent person is motivated by consideration of consequences which Kant says has no moral worth **(1 mark)** • in this scenario punishing an innocent person involves treating the person merely as a means to an end which Kant says is immoral **(1 mark)** • if you punish an innocent person in order to benefit society, you are failing to respect society's autonomy and human dignity by deceiving them **(1 mark)** • the maxim 'punish an innocent person' cannot be universalised because it contains a contradiction in conception. **(1 mark)** If you universalised the maxim, the concept of punishment (inflicting pain on someone who has done something wrong) would make no sense. **(1 mark)** There is also a contradiction in the will because you could get punished even if you had done nothing wrong. **(1 mark)**. This is clearly not something that you, a rational person, would will to be universalised **(1 mark)** **Virtue Ethics points related to the scenario:** • a virtuous person would not want to hurt someone who has done nothing wrong **(1 mark)** • a follower of Virtue Ethics would argue that punishing an innocent person is not what a virtuous person would do, as it would express the vice of dishonesty/ego. **(1 mark)** • you would be failing to show the virtue of respect towards the innocent person by treating them like this **(1 mark)** • rather than focusing on developing virtuous character, you would be treating someone badly to benefit society **(1 mark)** If you decide to punish an innocent person then you are thinking about consequences rather than character **(1 mark)** • punishing an innocent person may be motivated by a desire to be the hero, which would not be virtuous **(1 mark)** **No mark should be awarded simply for stating what choice a follower of their other moral theory would make.**

[END OF MARKING INSTRUCTIONS]

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